

SENATE No. 88

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting cannabis equity businesses by enforcing ownership limits.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/18/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/8/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>4/8/2025</i>

SENATE No. 88

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 88) of Liz Miranda for legislation to protect cannabis equity businesses by enforcing ownership limits. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting cannabis equity businesses by enforcing ownership limits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4(a) of Chapter 94G of the General Laws is amended by inserting,
2 at the end of the subsection, the following subsections:-

3 (XXXIII) conduct an audit of all marijuana establishment and marijuana treatment center
4 license owners to ensure compliance with Chapter 94G, Section 16.

5 (XXXIV) establish a whistleblower protection program for individuals reporting
6 violations of ownership limits, other anti-competitive practices, workplace safety violations, and
7 other violations of commission regulations by marijuana establishments, marijuana treatment
8 centers, and municipalities. Protections shall include safeguarding against retaliation in
9 employment, financial penalties, or other forms of retribution for workers, investors, and any
10 other individual with relevant information. The program shall include clear processes for
11 reporting and addressing complaints and publicly reporting the findings.

(XLI) establish and maintain an anonymous tip line for individuals to report suspected violations of ownership limits or other anti-competitive practices within the cannabis industry. The tip line shall be accessible by phone and online submission and developed in partnership with the cannabis advisory board and a working group or at least one public listening session with public feedback from stakeholders.

(XLII) publish and maintain a publicly accessible database of license ownership information. The database shall include but not be limited to the names of licensees, the percentage of ownership interest held by each individual or entity, and other relevant details as determined by the commission. The data shall be updated regularly and made available in an easily accessible format, including but not limited to being accessible through the cannabis control commission license tracker and retail finder in a manner that allows users to easily view related records and access all publicly available information in a web-accessible format, provided that the database shall not include personal contact information or other protected information.

SECTION 2. Section 9 of Chapter 12A of the General Laws is amended by inserting, at the end of the section, the following:-

The Inspector General shall have the authority to audit compliance with ownership limits established pursuant to Chapter 94G, Section 16 and related regulations, including but not limited to reviewing ownership structures, financial arrangements, and management agreements of cannabis license holders. Findings shall be reported to the Cannabis Control Commission and the chairs of the joint committee on cannabis policy.

SECTION 2. Section 12 of Chapter 11 of the General Laws is amended by inserting, at the end of the section, the following:-

34 The department of state auditor shall have the authority to audit compliance with
35 ownership limits established pursuant to Chapter 94G, Section 16 and related regulations,
36 including but not limited to reviewing ownership structures, financial arrangements, and
37 management agreements of cannabis license holders. Findings shall be reported to the Cannabis
38 Control Commission and the chairs of the joint committee on cannabis policy.